

IMPORTANT PLAN NOTICES

This packet of notices related to our health care plan includes a notice regarding how the Plan's prescription drug coverage compares to Medicare Part D. If you or a family member is also enrolled in Medicare Parts A or B but not Part D, you should read the Medicare Part D notice carefully. It is titled, "Important Notice from Wineshipping.com LLC About Your Prescription Drug Coverage and Medicare."

HIPAA SPECIAL ENROLLMENT NOTICE

If you are declining enrollment for yourself or your dependents (including your spouse) because of other health insurance or group health plan coverage, you may be able to enroll yourself or your dependents in this plan if you or your dependents lose eligibility for that other coverage (or if the employer stops contributing towards your or your dependents' other coverage). However, you must request enrollment within 30 days after your or your dependents' other coverage ends (or after the employer stops contributing toward the other coverage).

In addition, if you have a new dependent as result of marriage, birth, adoption, or placement for adoption, you may be able to enroll yourself and your dependents. However, you must request enrollment within 30 days after the marriage, birth, adoption, or placement for adoption.

Special enrollment rights also may exist in the following circumstances:

- If you or your dependents experience a loss of eligibility for Medicaid or a state Children's Health Insurance Program (CHIP) coverage and you request enrollment within 60 days after that coverage ends; or
- If you or your dependents become eligible for a state premium assistance subsidy through Medicaid or a state CHIP with respect to coverage under this plan and you request enrollment within 60 days after the determination of eligibility for such assistance.

Note: The 60-day period for requesting enrollment applies only in these last two listed circumstances relating to Medicaid and state CHIP. As described above, a 60-day period applies to most special enrollments.

To request special enrollment or obtain more information, contact Human Resources at 707.690.4793.

SECTION 125 INFORMATION

This plan is available if an employee enrolls in the health plan. A Section 125 Plan is a valuable benefit that allows employees to save tax dollars. Employees may choose this option when they enroll in the health plan. Employee contributions to the health plan will be deducted from their paycheck pre-tax unless they choose otherwise at enrollment. By electing pre-tax coverage in the health plan, employees give Wineshipping.com LLC permission to deduct their premium contribution before tax. Once enrolled, changes can be made only on the plan's anniversary date or as a result of a qualifying event. In the event of a contradiction between the information in this overview and the Section 125 Plan Document, the Plan Document shall be considered the controlling document.

NOTICE OF AVAILABILITY OF THE WINESHIPPING.COM LLC EMPLOYEE BENEFIT PLAN NOTICE OF PRIVACY PRACTICES

THIS NOTICE DESCRIBES HOW YOU MAY OBTAIN A COPY OF THE PLAN'S NOTICE OF PRIVACY PRACTICES, WHICH DESCRIBES THE WAYS THAT THE PLAN USES AND DISCLOSES YOUR PROTECTED HEALTH INFORMATION.

The Wineshipping.com LLC Employee Benefit Plan (the "Plan") provides health benefits to eligible employees of Wineshipping.com LLC, (the "Company") and their eligible dependents as described in the Summary Plan Description(s) for the Plan. The Plan creates, receives, uses, maintains and discloses health information about participating employees and dependents while providing these health benefits. The Plan is required by law to provide notice to participants of the Plan's duties and privacy practices with respect to covered individuals' protected health information and has done so by providing to Plan participants a Notice of Privacy Practices, which describes the ways that the Plan uses and discloses protected health information.

To receive a copy of the Plan's Notice of Privacy Practices, you can contact Human Resources at gina.francis@wineshipping.com, who has been designated as the Plan's contact person for all issues regarding the Plan's privacy practices and covered individuals' privacy rights.

NEWBORNS' AND MOTHERS' HEALTH PROTECTION ACT

Group health plans and health insurance issuers generally may not, under federal law, restrict benefits for any hospital length of stay in connection with childbirth for the mother or newborn child to less than 48 hours following a vaginal delivery, or less than 96 hours following a cesarean section. However, federal law generally does not prohibit the mother's or newborn's attending provider, after consulting with the mother, from discharging the mother or her newborn earlier than 48 hours (or 96 hours as applicable). In any case, plans and issuers may not, under federal law, require that a provider obtain authorization from the plan or the insurance issuer for prescribing a length of stay not in excess of 48 hours (or 96 hours).

GINA WARNING FOR PROGRAM MATERIALS REQUESTING MEDICAL INFORMATION

In answering questions as part of Wineshipping.com LLC Employee Benefit Plan, do not include any genetic information.

The Genetic Information Nondiscrimination Act of 2008 (GINA) prohibits health plans and health insurance issuers from discriminating based on genetic information. GINA generally prohibits group health plans and health insurers from requesting or requiring genetic information of an individual or family member, or using genetic information for underwriting purposes or in determining eligibility, premium rates, or contributions.

"Genetic information" includes information about an individual's genetic tests, the genetic tests of family members, and the manifestation of a disease or disorder in family members (family medical history). Genetic information also includes information regarding an individual's or family member's request for or receipt of genetic services, or participation in clinical research that includes genetic services.

Your health plan and its administrators will not use or disclose genetic information except as permitted or required by applicable law.

WOMEN'S HEALTH AND CANCER RIGHTS NOTICE

The Wineshipping.com LLC Employee Benefit Plan is required by law to provide you with the following notice:

The Women's Health and Cancer Rights Act of 1998 ("WHCRA") provides certain protections for individuals receiving mastectomy-related benefits. Your Plan, as required by the Women's Health and Cancer Rights Act of 1998, provides benefits for mastectomy-related services, including all states of reconstruction and surgery to achieve symmetry between the breasts, prostheses, and complications resulting from a mastectomy, including lymphedema.

Coverage will be provided in a manner determined in consultation with the attending physician and the patient for:

- All stages of reconstruction of the breast on which the mastectomy was performed;
- Surgery and reconstruction of the other breast to produce a symmetrical appearance;
- Prostheses; and
- Treatment of physical complications of the mastectomy, including lymphedemas.

The Wineshipping.com LLC Employee Benefit Plan provides medical coverage for mastectomies and the related procedures listed above, subject to the same deductibles and coinsurance applicable to other medical and surgical benefits provided under this plan. If you would like more information on WHCRA benefits, please refer to your or contact Human Resources at gina.francis@wineshipping.com.

NOTICE REGARDING WELLNESS PROGRAM

Wineshipping.com LLC may elect to offer a voluntary wellness program that is available to all employees. The program is administered according to federal rules permitting employer-sponsored wellness programs that seek to improve employee health or prevent disease, including the Americans with Disabilities Act of 1990, the Genetic Information Nondiscrimination Act of 2008, and the Health Insurance Portability and Accountability Act, as applicable, among others. If you choose to participate in the wellness program, you may be asked to complete a voluntary health risk assessment or "HRA" that asks a series of questions about your health-related activities and behaviors and whether you have or had certain medical conditions (e.g., cancer, diabetes, or heart disease). You may also be asked to complete a biometric screening or annual physical.

You are not required to complete the HRA or to participate in the blood test or other medical examinations. However, employees who choose to participate in the wellness program may be eligible for an incentive. Although you are not required to complete the HRA or participate in the biometric screening, only employees who do so will receive the incentive.

Additional incentives may be available for employees participating in certain health-related activities or achieving certain health outcomes. If you cannot participate in any of the health-related activities or achieve any of the health outcomes required to earn an incentive, you may be entitled to a reasonable accommodation or an alternative standard. You may request a reasonable accommodation or an alternative standard by contacting HR at Wineshipping.com LLC

The information from your HRA and the results from your biometric screening will help you understand your current health and potential risks. They may also be used to offer you services through the wellness program. You are also encouraged to share your results or concerns with your doctor.

PROTECTIONS FROM DISCLOSURE OF MEDICAL INFORMATION

We are required by law to maintain the privacy and security of your personally identifiable health information. Although the wellness program and Wineshipping.com LLC may use aggregate information it collects to design a program based on identified health risks in the workplace, Wineshipping.com LLC will never disclose any of your personal information either publicly or to the employer, except as necessary to respond to a request from you for a reasonable accommodation needed to participate in the wellness program, or as expressly permitted by law. Medical information that personally identifies you in connection with the wellness program will not be provided to your supervisors or managers and may never be used to make decisions regarding your employment.

Your health information will not be sold, exchanged, transferred, or otherwise disclosed except to the extent permitted by law to carry out specific activities related to the wellness program, and you will not be asked or required to waive the confidentiality of your health information as a condition of participating in the wellness program or receiving an incentive. Anyone who receives your information to provide you services as part of the wellness program will abide by the same confidentiality requirements. The only individual(s) who will receive your personally identifiable health information are those individuals who you specifically authorize to provide you with services under the wellness program.

In addition, all medical information obtained through the wellness program will be maintained separately from your personnel records, information stored electronically will be encrypted, and no information you provide as part of the wellness program will be used to make any employment decision. Appropriate precautions will be taken to avoid any data breach, and in the event a data breach occurs involving information you provide in connection with the wellness program, we will notify you immediately.

You may not be discriminated against in employment because of the medical information you provide while participating in the wellness program, nor may you be subjected to retaliation if you choose not to participate.

If you have questions or concerns regarding this notice, or about protections against discrimination and retaliation, please get in touch with human resources at gina.francis@wineshipping.com.